

22CMCV00662 22CMCV00662

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-29

Motion: DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION TO TAX COSTS

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Case Number: 22CMCV00662 Hearing Date: June 29, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

T.A.,

Plaintiff,

vs.

DOE 1,

Defendant.

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CASE NO: 22CMCV00662

[TENTATIVE]

ORDER RE: DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION TO TAX COSTS

Dept.

A

DATE:

June 29, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 12/09/2022

SAC

FILED: 06/22/2023

MOVING PARTY: Defendant

Los Angeles Unified School District

RESPONDING PARTY: Plaintiff

T.A.

1. Background

This is a childhood sexual assault revival action filed pursuant to Code of Civil Procedure § 340.1. Plaintiff T.A. ("Plaintiff") alleged that in 1979 and 1980, Plaintiff was a student at Alain LeRoy Locke College Preparatory Academy ("Locke"). Plaintiff alleged that an employee at Locke, Jack Jacobson, sexually abused Plaintiff in 1979 and 1980 while Plaintiff was a student at School. Plaintiff alleged that School was part of defendant Los Angeles Unified School District ("District") and that District breached its duty of care to Plaintiff.

Trial was held in this action between March 9, 2026 and March 18, 2026. The jury entered a verdict on March 18, 2026. Judgment was entered for Plaintiff and against District on March 24, 2026. On June 22, 2026, the court entered partial judgment notwithstanding the verdict on the second cause of action, leaving the judgment in tact as to the first cause of action.

2. Discussion

On April 13, 2026, Plaintiff filed a Memorandum of Costs, seeking to recover \$71,333.40 in costs. District moves to strike or tax Plaintiff's memorandum of costs. District contends that Plaintiff's memorandum of costs and the attached worksheet are inconsistent, that some of Plaintiff's claimed costs are noncompensable, and that Plaintiff failed to provide sufficient information to establish that the costs claimed were incurred in connection with the instant case rather than other, similar cases.

In opposition, Plaintiff concedes that his claimed expert fee costs are noncompensable but contends that other costs were reasonably incurred in connection with this action. Plaintiff also contends that additional costs were discovered while working on his opposition.

"In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears

proper on its face. 'If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.' (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131 (Nelson).)

Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary. (Id. at p. 132.) 'Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed by abuse of discretion.'" (Foothill-De Anza Community College Dist. v. Emrich (2007) 158 Cal.App.4th 11, 29-30; citing Ladas v. California State Auto. Ass. (1993) 19 Cal.App.4th 761, 774.) "[I]f the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Melnik v. Robleto (1976) 64 Cal.App.3d 618, 624.) The omission of an item from a cost memorandum may generally be regarded as a waiver of the prevailing party's claim to that item. (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 70.)

Plaintiff's memorandum of costs and the summary therein are indeed inconsistent with the attached worksheets. District contends that the inconsistency between the memorandum of costs summary and worksheet renders Plaintiff's memorandum of costs improper on its face. Although District cites to Nelson for the proposition that the filing of a motion to tax costs is a proper objection to claimed costs that are improper on their face, District provides no authority stating that the worksheet for a memorandum of costs invalidates the memorandum of costs where it is inconsistent with the summary. Nelson concerns whether particular items are clearly proper or improper, not the technical specifications of the memorandum of costs. (Id. at p. 131.)

The summary is declared to be correct by Plaintiff's counsel under penalty of perjury. The worksheet also constitutes a representation made to the court.

However, there is not a substantial variance between the amounts sought in the summary versus those listed in the worksheet. The court will therefore tax costs in the amount of the difference between the two documents, awarding costs in the amount of the lower of the figures set forth in the two documents with respect to the costs the court deem recoverable, with the exceptions noted:

1. Filing fees: The court awards \$1,507.81, as reflected on the summary. Though the total on the worksheet is less, the total of the itemized entries is larger than the amount

sought on the summary.

4. 4. Deposition costs: The court awards \$4,512.55, as the amount is identical on both documents.

5. 5. Service of process costs: The court awards \$690.40, as reflected on the worksheet.

8. Expert

witness fees: The court taxes the entire \$46,454.60.

11. Court reporter costs: The court awards \$11,808.35, as reflected on the

worksheet.

14. Efiling/service costs: The court taxes \$899.688.

15. Other/Mediation: The court awards \$4,000.00 as reasonably necessary.

District contends that Plaintiff fails to provide adequate supporting information for his claimed costs, including an itemized breakdown, and failed to provide documentation showing that the claimed costs were incurred in connection with this action rather than other, similar actions. However, unless Plaintiff's claimed costs are improper on their face under Nelson, the burden is on District to show that Plaintiff's claimed costs were unnecessary or unreasonable. It is therefore District's burden to show that claimed costs were shared with other actions and were not actually incurred solely in connection with this action, and District has not carried that burden.

District contends that Plaintiff's deposition costs in the amount of \$4,512.55 were not reasonably incurred because Plaintiff failed to provide proof that the costs were actually incurred and because some deponents, in particular Dr. John Schwartzberg, did not testify at trial. As previously noted, it is District's burden to establish that costs were not reasonably and necessarily incurred, including whether they were actually incurred. Deposition costs are allowed by Code of Civil Procedure §1033.5. Additionally, depositions of parties who do not testify at trial may be

necessary and reasonable. (See *Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557.) Plaintiff argues that Dr. Schwartzberg's deposition was reasonably taken in good faith in preparation for litigation, and that the strategic decision not to call Dr. Schwartzberg at trial does not negate the good faith of taking his deposition. The court finds that Plaintiff's deposition costs as claimed in the memorandum of costs were reasonably incurred in the amount of \$4,512.55.

District contends that Plaintiff's claimed service of process fees in the amount of \$1,183.71 are improper because Plaintiff failed to provide documentation supporting that these costs were actually and reasonably incurred. However, as previously noted, it is District's burden to establish that these costs were not reasonably incurred if the claimed costs are allowed by statute or otherwise proper on their face. Service fees are permitted by Code of Civil Procedure § 1033.5. District has not carried its burden. However, the court taxes these costs in part due to the variance between the summary and the worksheet and awards \$690.40 as reflected on the worksheet.

District contends that Plaintiff's expert witness fees in the amount of \$46,454.60 corresponded to an expert who was not ordered by the court and therefore that these costs are noncompensable. Plaintiff concedes that these costs are noncompensable and states that they were included in error. The court will therefore tax these costs in the amount of \$46,454.60.

District contends that Plaintiff fails to state what statute provides court reporter fees, as Code of Civil Procedure § 1033.5 states that court reporter fees are recoverable "as allowed by statute." District misreads Code of Civil Procedure § 1033.5. Court reporter fees are recoverable even in the absence of a different statute permitting them to be recovered, as Code of Civil Procedure § 1033.5 allows their recovery. (See *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 58.) District also contends that Plaintiff fails to provide supporting documentation; as previously noted, it is District's burden to establish that these costs were not reasonably incurred.

District contends that Plaintiff fails to provide adequate supporting documentation for filing and service fees. As previously noted, it is District's burden to establish that these costs were not reasonably incurred because filing and service fees are compensable under Code of Civil Procedure § 1033.5. However,

the court taxes the \$899.68 in e-filing costs reflected on the summary but not reflected on the worksheet.

District contends that voluntary, unsuccessful mediation costs were not reasonably incurred and are not expressly allowable under Code of Civil Procedure § 1033.5. Costs for a voluntary, unsuccessful mediation are not necessarily unrecoverable. (Berkeley Cement, Inc. v. Regents of University of California (2019) 30 Cal.App.5th 1133, 1143.) Rather, under such circumstances, whether the mediation was reasonably necessary depends upon the facts of the case. District contends that the mediation was not reasonably necessary because it was merely incurred in an effort to facilitate settlement. This proposition, if credited, would form a blanket rule that voluntary mediation is not reasonably necessary. In Berkeley Cement, Inc. v. Regents of University of California (2019) 30 Cal.App.5th 1133, the court expressly rejected this blanket rule. Therefore, District has not shown that Plaintiff's mediation costs were not reasonably incurred. Moreover, the court finds that mediation expenses were reasonably necessary.

In opposition, Plaintiff contends that additional costs were located that had not been included in the memorandum of costs. Failure to include these claimed costs in the memorandum of costs waived them, particularly as Plaintiff provides no explanation for their omission from the memorandum of costs.

3. Conclusion

Based on the foregoing, The court DENIES District's request to strike Plaintiff's memorandum of costs. The court GRANTS IN PART and DENIES IN PART District's motion to tax Plaintiff's memorandum of costs. The court taxes \$46,454.60 in costs pertaining to expert witness fees, and taxes \$2,359.69 in additional costs, for a total reduction of \$48,814.29. The court awards Plaintiff costs in the amount of \$22,519.11.

District
is ordered to give notice.

IT
IS SO ORDERED.

DATED: June 29, 2026

Hon. Elizabeth L. Bradley